

Smt. Paramita Halder W/O Subharajyothi vs Mr. Subharajyoti Halder S/O Tapan on 4 March, 2023

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KABC050025592014

Presented on : 17-09-2014
Registered on : 17-09-2014
Decided on : 04-03-2023
Duration : 8 years, 5 months, 17 days

IN THE COURT OF THE METROPOLITAN MAGISTRATE
TRAFFIC COURT- III, BENGALURU.
DATED THIS THE 4 th DAY OF MARCH 2023

Present: Smt. Kusuma. V.
Metropolitan Magistrate,

Traffic Court-III, Bengaluru.

Crl. Mis. No.206/2014

Petitioner : Smt. Paramita Halder W/o Subharajyothi
Halder, 30 Yrs, R/at No. 81, 1st floor, 3rd
Main, Sri. Gururaghavendra Layout, Near
to Supra South City Hospital, JP Nagar, 7 th
Phase, Bengaluru-78.

(By Sri. V.G.B, Adv.)

V/s.

Respondents : 1. Mr. Subharajyoti Halder S/o Tapan
Kumar Halder, 34 Yrs, R/at No. 64, 22 nd
Cross, 29th Main, BTM 2nd Stage,
Bengaluru-76.

Respondent No.1 working at:

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Maxim Integrated India, 4th Floor, Tower-B,
Commercio at Mantd, 51/2-4, East Wing,
Devarabisanahalli Flyover, Kariyammana
Agrahara, Varthur Hobli, Bengaluru-03.

2. Tapan Kumar Halder S/o Late
Birendranath Halder, 64 Yrs.

3. Bulurani Halder W/o Tapan Kumar
Halder, 58 Yrs.

4. Bebojyoti Halder S/o Tapan Kumar, 34
Yrs.

5. Anuradha Halder W/o Debojyoti Halder,
28 Yrs.

Respondent Nos.2 to 5 R/at Gala Kuthi,
Village and Post,Bankura, West Bengal.
(By Sri. A.K. Adv.)

ORDERS ON MAIN PETITION

1. This is an application filed by the petitioner under Sec. 12 of Protection Of Women From Domestic Violence Act, 2005.

2. By filing this petition the petitioners have sought various reliefs fallen U/sec. 18, 19, 20 and 22 of DV Act.

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3. The format as required under the DV Act is duly filled up and the same is presented by the petitioner along with the affidavit. In the required format, the detail of the petitioners' case cannot be made out, the same can be gone through in the evidence let in by the petitioner. Hence, before considering the reliefs sought for, it becomes just and necessary to look into the case of the petitioners.

4. The case of the petitioner is that on 27.1.2008 as per Hindu rites and rituals at Champadanga behind telephone exchange, village and post Champadanga, PS, Tarakeswar, Hooghly District, West Bengal, Pin Code-712401 and subsequently the marriage was registered before the Marriage Officer with the Certificate bearing Serial No.8/2008, Act XLIII of 1954, for the District of Tarakeswar Block. That the petitioner at the time of marriage as per the tradition, her parents gave cot, almaiah etc., all valuable

things belonging to the petitioner are presently in the custody of the respondents. That soon after the marriage the petitioner joined the respondent no.1 in the matrimonial

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house at Sree Nidhi Prim Rose Apartment, flat No.102, 86 & 86/1, 2nd main, Bank of Baroda colony, Puttenhalli, 6th phase, JP Nagar, Bengaluru-78. The both the petitioner and the respondent no.1 lived in the matrimonial house happily for some time. Thereafter the respondent no.1 and other respondents started inflicting mental and physical torture to the petitioner.

5. The petitioner further submits that in the month of December 2009, the respondent no.1 acquired physical ailment known as erectile dysfunction and as such he overcame the ailment in the month May 2013 with the support of the petitioner and the treatment. That, during this period in order to camouflage the respondent no.1 weakness, the respondent no.1 inflicted violence against the petitioner though she supported respondent no.1 in all respect to overcome the respondent no.1 said ailment.

6. The petitioner further submits that the respondent no.1 started to abuse the petitioner using language and the respondent no.1 also assaulted her using the respondent

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no.1 fist and placed blows thereafter the respondent no.1

started demanding the petitioner for unnatural and abnormal sexual intercourse such as anal sex and when she resisted the respondent no.1 have beaten her mercilessly and abused her using filthy language and on 27.12.2013 the respondent no.1 forcefully evicted the petitioner out of the matrimonial house by beating her mercilessly without providing any extra cloth, keeping all her golden ornaments and her belongings. All her golden ornaments and belongings continue to remain in the custody of the respondents above. All her efforts to join the respondent no.1 went in vain. However, per her parent's advice, on 8.1.2014 the petitioner came back from her parent's house to join the respondent no.1 in matrimonial house at Bangalore at the matrimonial house and to her shock and surprise, she found that the respondent no.1 had shifted the house without her knowledge taking away all her valuables.

7. The petitioner further submits that the petitioner in

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order to join the respondent no.1 approached him at his office premises, wherein he assaulted the petitioner and as such a complaint was filed before the HAL police. The respondent no.1 instead of reconciling with the respondent no.1 wife did not appear before the HAL police station though the police called the respondent no.1 and instead the respondent no.1 threatened the petitioner to give divorce

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and also threatened wife's dire consequences. The petitioner
without an alternative filed complaint the J.P Nagar Police
Station in Cr.No.79/2014 dtd: 30.1.2014 pending in the file
of the Learned 5th ACMM at Bengaluru.

8. The petitioner further submits that set out a notice to
the respondent no.1 calling upon to take the petitioner to
the matrimonial home. The respondent no.1 instead of
taking the petitioner to the matrimonial home gave
untenable reasoned reply to the said notice and called her to
come forward to the mutual divorce. In the month of April
2014, the respondent no.1 invited the petitioner to come
forward for an amicable settlement and as such the

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petitioner anxiously came back from her native in West
Bengal and directly went to meet the respondent no.1 at
Bengaluru with a fond hope of reconciliation. On 19.4.2014,
when the petitioner came to join the respondent no.1 to the
shock and of the petitioner the respondent no.1 along with
his friend who molested the petitioner and together tried
take away her life. In this connection case is filed before
MICO Layout Police Station.

9. That even after all the untoward incidents the
petitioner is willing to stay with the respondent no.1
provided the respondent no.1 stop all the respondent no.1
illegal methods of harassment and torture and with an
assurance that the respondent no.1 will not repeat the

harassment and torture. With such conditions, the petitioner is ready and willing to join the matrimonial relationship with the respondent no.1. Under such circumstances, and conditions the petitioner is willing to forgive the past torture and harassment.

10. The petitioner further submits that the respondent

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no.1 is gainfully employed working in Maxim Integrated India and getting a sum of more than Rs.2,00,000/- per month. The respondent no.1 is having owning a residential building in West Bengal. The respondent no.1 is also having a residential site in a posh locality, the respondent no.1 is also having immovable properties at Bengaluru. Further, the respondent no.1 has let finance to his friends and family and getting interest at the rate of 4% per month and further he is having movable properties and he is getting monthly income from other investments such as shares. In all the respondent no.1 is getting a sum of Rs.3,00,000/- per month.

11. The petitioner further submits that she also seeks for compensatory order for grant of compensation for the damages as a result of injuries which included torture and emotional abuse, verbal abuse caused by the act of domestic violence caused by the respondents. By way of separate application as contemplated under the prevention

12. On service of notice, the respondents have appeared before court through their counsel. The respondent no.1 had filed his objections, thereafter the respondent nos. 2 to 5 have filed petition before Hon'ble High Court of Karnataka and said application was allowed. In the said order, the case against respondent nos. 2 to 5 had been quashed by the Hon'ble High Court of Karnataka.

13. In the objections the respondent no.1 stated that there is no dispute regarding marriage solemnized between the petitioner and the respondent no.1. Further stated that petition filed by the petitioner by mentioning the vague allegations against the respondent no.1. Further submits that the marriage between the parties was a love cum arranged marriage and there were no demands for dowry or any other articles. That the respondent no.1 family had incurred expenses to the tune of rupees 12 Lakhs for the wedding apart from the gold of 850 grams and other gifts to the petitioner's and her family which even today is in the custody of the petitioner only. At no point of time, the

petitioner has never kept any of her valuables or jewel at the matrimonial home. That the valuable gifts made by the parents of the respondent no.1 much before marriage were also in the custody of the petitioner's only.

14. The respondent no.1 further submits that thereafter the parties had set up their matrimonial home at Bengaluru at Apt-102. Sreenidhi Primrose Apartment, 2 nd Main, Bank of Baroda Colony, J.P Nagar, Phase-7, Bengaluru-78. That the respondent no.1 was shocked to see the indifferent attitude of the petitioner immediately after marriage. The petitioner seemed to be more interested in knowing the bank balance, property details etc., of the r, no.1 and found to be as lost as not able to get immediately the financial status of the respondent no.1. That the respondent no.1 was very much taken aback by this behavior of the petitioner. That the petitioner got easily irritated over trivial issues causing deep hurt, anguish and embarrassment to the respondent no.1. That the petitioner though did not condone the said act of the respondent had kept quite over

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the same as he did not want to make an issue of the same.

15. That the married life of the respondent no.1 had been one of turmoil right from day one of the marriage. That the petitioner is very short tempered by nature and would often fight with the respondent no.1 over trivial issues. That the petitioner dictated terms to the respondent no.1 who was not permitted to take any decisions on his own. That if the respondent no.1 were to raise his voice against the dictatorial attitude of the petitioner the petitioner would threaten the respondent no.1 stating that she would commit

suicide. The petitioner showed scant respect towards the parents and family members of the respondent no.1. That in fact the petitioner insisted that the respondent no.1. Snap all ties with his family members. That gradually the petitioner even started insisting that the respondent no.1 should not even call up his parents and enquire regarding their welfare.

16. That in spite of the best attempts of the respondent no.1, the petitioner had failed to correct her wayward behavior and on the contrary would often threaten the

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respondent no.1 stating that she would lodge a complaint against the respondent no.1 alleging that he had harassed her for dowry. That the petitioner had further threatened to implicate the respondent no.1 family members. The petitioner would further threaten the respondent no.1 stating that she would make life miserable for the respondent no.1 at his work place and would come to his office and create unpleasant scenes and make life miserable for the respondent no.1.

17. Since from marriage over the past 6 years, irreconcilable differences continued between the petitioner and the respondent due to the adamant and violent behavior of the petitioner along with her unreasonable demands for monetary benefits. Over the past few years, the respondent no.1 and his family has been subjected to

enormous mental torture and harassment by the petitioner and her family members. That the petitioner is a master's degree holder and is working at Griha Software Pvt., Ltd., at J.P Nagar, Bengaluru for a monthly salary of Rs.25,000/-

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per month. That inspite of she being a working woman the petitioner has been pressurizing the respondent no.1 with unreasonable demands for monetary of material benefits on occasions. That the respondent no.1 had provided the petitioner with all possible comforts including decent accommodation in a lavish 2 BHK apartment in a posh and central locality like J.P Nagar in Bengaluru and have also appointed on cook and a maid servant for her assistance all these six years as the respondent no.1 never expected the petitioner to cook for him.

18. That due to above mentioned reasons the respondent no.1 is mentally harassed to the core and highly depressed and exhausted with the petitioners irrational demands and obnoxious behavior which seems to be only increasing with each passing day. In the year 2011 the demand for money to be transferred to her family to the tune of Rs.50,000/- and again demand for an amount of Rs.1,50,000/- to be transferred to her family were a big issues between the parties.

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19. As such the respondent no.1 started living separately

in a rented accommodation from the 8 th January 2014 and the petitioner continued to live in the same apartment. That on 22.1.2014 at about 11.00 a.m. in the morning the petitioner her elder brother and his wife came to the respondent no.1 office and had made a scene at his work place and tried to attack him. That the elder brother of the petitioner started a scuffle with the respondent no.1 tore his shirt, punched him in the chest and threatened him to beat up publicly in front his office colleagues and office security. Hence, prays to dismiss the petition.

20. Keeping in mind the evidence given by the petitioner it becomes just and necessary to look into whether the orders required by the petitioner various reliefs which are fallen under Sec. 18, 19, 20 and 22 of DV Act can be granted.

21. The 1st petitioner in support of her case has got examined herself as PW.1 and got exhibited documents as Exs.P.1 to 11. The respondent no.1 got examined himself as
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RW.1 and got exhibited documents as Exs.R.1 to R.15.

22. Heard arguments from counsel for the petitioner.
Perused the documents.

23. The points that arise for consideration are:-

1. Whether the petitioner is entitled for the Protection Orders as contemplated under Sec.18 of DV Act?

2. Whether the petitioner is entitled for residential order relief as contemplated under Sec.19 of DV Act?
 3. Whether the petitioner is entitled for monetary relief as contemplated under Sec.20 of DV Act?
 4. Whether the petitioner is entitled for compensation as contemplated under Sec.22 of DV Act?
 - 4) What order?
24. The findings to the above points are as follows:-

Point No.1 - In the affirmative
Point No.2 - In the Negative
Point No.3 - Partly in the affirmative
Point No.4 - Partly in the affirmative
Point No.5 - As per Final Order, for the following:-
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R E A S O N S

25. Reasoning on Point No.1 to 4: Since these points are interconnected with each other and requires common appreciation of evidence, hence to avoid repetition of facts all the points are taken together for common consideration.

26. The case of the petitioner is that the respondent no.1 have given mental and physical harassment by demanding additional dowry and for grant of permanent accommodation. The petitioner has sought for various reliefs which are fallen U/s 18, 19, 20 and 22 of DV Act.

27. As per the provisions of Sec.18 of DV Act. As per this section, the Magistrate may, after giving the petitioner and the respondent an opportunity of being heard and on

being prima-facie satisfied that domestic violence has taken place or is likely to take place, pass a protection order in favour of the petitioner and prohibit the respondent from committing such domestic violence.

28. In the affidavit filed by the petitioner along with
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petition she has stated that the averments made in the petition are all true and correct. The petitioner has stated that she was subjected to verbal and emotional abuse and she was insulted for not bringing dowry and she was also subjected to economic violence by not providing money for maintaining herself and the respondent no. 1 was not providing food, cloths, for herself. The petitioner was forced to leave the matrimonial house by the respondent no.1 by demanding to bring additional dowry, failing which they had threatened the petitioner with dire consequences.

29. Further on perusal of the petition, it can be seen that the petitioner stated in her petition that the respondent no.1 have evicted or excluded the petitioner from the shared house illegally.

30. No doubt, as per Sec.3 of DV Act if at all the respondent commits any domestic violence as above pleaded is fully established by the petitioner then definitely the petitioner will be entitled for an order of protection under Sec.18 and for residential orders as per Sec.18 of DV Act and

mandatory reliefs as contemplated under Sec.20 and 22 of the Act.

31. As per Sec.19 of DV Act while disposing an application under Sec.12(1) PWDV Act, a Magistrate, may on being satisfied that the domestic violence has taken place can pass residence order restraining the respondent from dispossessing or in any other manner disturbing the possession of the petitioner from the shared household.

32. In the case on hand, it is the case of the petitioner that she is residing along with the respondent no.1 after the marriage in the shared house, wherein the respondent no.1 and other respondents have given mental and physical torture to the petitioner. After the marriage in the year 2009, she know about that the respondent no.1 acquired physical ailment known as erectile dysfunction and as such he over come the ailment in the month of May 2013 with the support of petitioner and the treatment. Even though the respondent no.1 has given mental and physical harassment to the petitioner. Thereafter, the respondent no.1 had thrown out

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the petitioner from matrimonial house. In this regard the petitioner has not furnished any documents to show that the respondents having house in their name. Therefore, the question of granting residential orders as per Sec.19 of DV Act cannot be considered in favour of the petitioner.

33. With regard to the reliefs as contemplated under

Sec.18 i.e, the protection orders as well as regarding the possession of mandatory reliefs as contemplated under Sec.20 and 22 it becomes just and necessary for the petitioner to establish the same.

34. The fact that both petitioner and the respondent no.1 are wife and husband is not in dispute. When the petitioner has let in evidence she has stated that subsequent to marriage, she was residing with the respondents in the shared household.

35. While deposing before the court the petitioner has stated that she has also contended that the respondents have used to harass her by demanding more dowry. In

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support of her case the petitioner to show domestic violence caused by the respondent no.1 against her, she has not furnished any documents, but in the pleadings as well as oral evidence, the petitioner has stated that the respondent no.1 has harassed the petitioner mentally and physically. On perusal of the same it is clear that there was domestic violence against the petitioner caused by the respondent no.1.

36. On the other hand, after service of notice, the respondents have appeared before the court by filing vakalath from their counsel. Mean while, the petition against the respondent nos. 2 to 5 had been quashed by the

Hon'ble High Court of Karnataka, then the respondent no.1 had filed objections to the main petition by denying all averments pleaded by the petitioner in her petition.

37. The petitioner examined herself as PW-1 by filing affidavit of examination-in-chief. In the said examination-in-chief, she reiterated the averments of the petition. The learned counsel for the respondent had cross examined the
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PW.1 in the cross examination, she denied all suggestions made by the counsel for the respondent. Further, she stated that now she is not working and she is not having any source of income. From 27.1.2008 to 27.12.2013 both the respondent no.1 and petitioner were living together, thereafter on 27.12.2013 at about 6.30 am. to 7.00 a.m. the respondent no.1 had thrown out from the house. During the course of cross examination, she stated that the respondent no.1 had harassed the petitioner mentally and physically. This contention is very clear that the respondent no.1 had caused domestic violence against the petitioner.

38. The respondent no.1 himself filed affidavit in lieu of examination in chief reiterated the averments of his objections. During the course of cross examination, he denied all suggestions made by counsel for the petitioner. Further, in the cross examination, he admits that he had not paid maintenance to the petitioner from January 2014

till the date of cross examination. Further, he admits that the Hon'ble High Court of Karnataka issued direction to the

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respondent no.1 to bear expenses of Rs.50,000/- for securing duplicate academic records to the petitioner. On perusal of over all cross examination, it appears that he is having sufficient means of source to maintain the petitioner.

39. On going through the oral and documentary evidence of petitioner and respondent no.1, it is clear that due to the dispute in marital relation between respondent no.1 and the petitioner, the petitioner is now residing separately apart from respondent no.1.

40. On perusal of the entire pleadings and documents and oral testimony of the petitioner, it is crystal clear that the petitioner is legally wedded wife of respondent no.1 and thereafter he gave harassment mentally and physically to the petitioner.

41. It is undisputed that on the date of filing the petitioner was legal wedded wife of respondent no.1. There are no materials on record to show that now the petitioner is earning and has sufficient means to maintain herself.

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42. Now coming to crucial aspect about the income of respondent no.1. The respondent no.1 is gainfully employed working in Maxim Integrated India and getting a sum of

more than Rs.2,00,000/- per month. The respondent no.1 is having owning a residential building in West Bengal. The respondent no.1 is also having a residential site in a posh locality, the respondent no.1 is also having immovable properties at Bengaluru. Further, the respondent no.1 has let finance to his friends and family and getting interest at the rate of 4% per month and further he is having movable properties and he is getting monthly income from other investments such as shares. In all the respondent no.1 is getting a sum of Rs.3,00,000/- per month.

43. In the petition the petitioner has sought for monthly maintenance of Rs.50,000/-, monetary compensation of Rs.1.00,00,000/- and compensation of Rs. 10,00,000/- to the petitioner. In this connection she furnished the documents to show that the respondent no.1 is having sufficient means of income from various sources

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and also in the affidavit of assets and liabilities the petitioner has mentioned the monthly income of the respondent no.1 and also having house property and ancestral properties. In support of this contention the petitioner has furnished sufficient documents to show that respondent no.1 is having sufficient income. In this case, the respondent nos. 1 has appeared before the court and filed his objections to the main petition. Therefore, the contention of the petitioner by swearing by way of affidavit

44. Thus taking into consideration the income of the respondent no.1, it is not justified for the petitioner to seek monthly maintenance of Rs.50,000/-, monetary compensation of Rs.1.00,00,000/- and compensation of Rs. 10,00,000/- to the petitioner. But as the respondent no.1 has not provided any maintenance to the petitioner and looking to the facts and circumstances of the case and also the case of the respondent no.1, it is still the duty of the respondent no.1 to provide compensation to the petitioner.

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Looking to the income of the respondent no.1, if an amount of Rs. 20,000/- monthly maintenance and Rs. 3,00,000/- towards compensation is to be paid by the respondent no.1 to the petitioner, then it would definitely meet the ends of justice to both the parties.

45. On going through entire materials on record, the petitioner has established her case i.e., the respondent no.1 has willfully neglected the petitioner to maintain her and also caused Domestic Violence against the petitioner.

46. The petitioner in her petition claimed several reliefs. On perusal of the materials produced on record, the both parties have not obtained divorce from competent court of law. Therefore the protection orders as per section 18 of the said Act does arise. For the entitlement of the above said all

reliefs as prayed in the petition the petitioner except pleadings with regard to the Domestic Violence by the respondent no.1 and willfully neglected by the respondent no.1 to maintain the petitioner, the petitioner has furnished the materials with regard to the averments of respondent's properties.

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47. Further, so, in the presence of sufficient materials the petitioner is entitled for the relief as contemplated U/s 22 of the Domestic Violence Act. Consequently, respondent no.1 is to pay Rs. 3,00,000/- towards compensation to the petitioner and Rs.20,000/- monthly maintenance during the lifetime of petitioner or till the petitioner remarries. Hence, this court answer these point no.1 in the affirmative, Point no.2 in the negative and Point no.3 and 4 partly in the affirmative.

48. Point No.5: In view of the findings on the above point nos.1 to 4 and the reasons stated therein, this court proceed to pass the following: -

ORDER

The petition filed by the petitioner U/sec. 12 of the Protection of Women from Domestic Violence Act, 2005 is hereby partly allowed.

The respondent no.1 is directed to restrained from causing any type of domestic violence against the petitioner.

Further, the respondent no.1 is hereby directed to pay the maintenance of Rs. 20,000/-p.m., from the date of this order to the petitioner i.e., during her lifetime or till the petitioner enters into remarriage as the case may be.

Further, the respondent no.1 is hereby directed to pay the compensation of Rs.3,00,000/- to the petitioner within two months from the date of this order.

The petition filed U/sec. 19 of PWDV Act is hereby dismissed.

Office is directed to issue free copy of the Judgement to the petitioner.

(Dictated to the stenographer directly on computer, corrected and then pronounced by me in the open court on this the 4th day of March 2023).

(Kusuma. V) MMTC-III, Bengaluru.

ANNEXURE List of witnesses examined for Petitioner:-

PW-1 Paramita Halder List of documents marked for Petitioner:

Ex.P.1 Jewellery receipts Ex.P.1 (a) Certificate of translation accuracy Ex.P.2 Railway tickets and Air tickets Exs.P.3 & 4 Documents regarding employment of respondent Exs.P.5 to 8 Income tax returns Ex.P.9 Bank statement Ex.P.10 & 11 Certified copies of FIR and charge sheet List of witnesses examined for Respondent:-

RW-1 Subharajyothi Halder List of documents marked for Respondent:

Ex.R.1	Legal notice
Ex.R.2	Complaint dtd: 30.01.2014
Ex.R.3	Certified copy of petition in MC no. 4926/2014
Ex.R.4	E-Mail SMS
Ex.R.5	Copy of bank statement
Ex.R.6	On line shopping papers
Ex.R.7 & 8	Medical documents
Ex.R.9	Air ticket
Ex.R.10	Mobile postpaid receipt
Ex.R.11	E-Mail letter
Ex.R.12	Copy of complaint
Ex.R.13	Reply to legal notice
Ex.R.14	Police endorsement
Ex.R.15	Resignation letter of respondent no.1

M.M.T.C-III, Bengaluru.